

REPUBLIC OF THE PHILIPPINES
HOUSE OF REPRESENTATIVES
Quezon City

EIGHTEENTH CONGRESS
Second Regular Session

House Bill No. **9432**



Introduced by **MAGDALO Party-List Representative**
HON. MANUEL DG. CABOCHAN III

EXPLANATORY NOTE

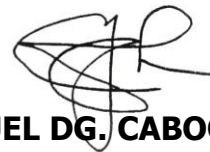
Facial recognition technology has received significant importance for a wide range of applications related to law enforcement. These include the use of CCTV cameras, smartphones, social media, and other online activities to identify a person by comparing and analyzing patterns based on the person's facial contours.

In March 2020, the city of Manila has engaged in the use of surveillance cameras capable of biometric systems through facial recognition. The cameras are capable of quickly identifying citizens' criminal records with the Philippine National Police, National Bureau of Investigation, and the Philippine Drug Agency.¹ While the use of facial recognition technology may prove beneficial in deterring crimes, there are reasonable worries from the public that it may violate their right to privacy.

¹ GMA News Online. Manila's CCTV cameras now have facial recognition capability. Information retrieved from <https://www.gmanetwork.com/news/news/metro/728528/manila-s-cctv-cameras-now-have-facial-recognition-capability/story/>. Dated March 5, 2020

Unlike other biometric systems, facial recognition technology can be operated for surveillance using public video cameras and be utilized in a manner that does not require the knowledge or consent of a person of interest. As with the storage of information, facial recognition data may be attacked by hackers and acquire sensitive personal data.

The use of facial recognition technology is far from exemplary as it still lacks a consistent legislative framework in terms of ethical use and limitations. It raises concerns such as invasion of privacy, data privacy concern, low reliability, and lack of regulation. This bill intends to regulate the development, sale, and distribution of Facial Recognition Technology in the country. It shall mandate companies and other entities to first acquire authorization and accreditation from the Department of Information and Communications Technology (DICT) before engaging in any Facial Recognition Technology.



MANUEL DG. CABOCHAN III

Representative

Magdalo Para Sa Pilipino Party-List

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AN ACT
REGULATING THE USE OF FACIAL RECOGNITION TECHNOLOGY AND FOR
OTHER PURPOSES

Be it enacted by the Senate and the House of Representatives of the Philippines in Congress assembled:

1 SECTION 1. *Short Title.*– This Act shall be known as the “Facial Recognition
2 Technology Regulation Act”.

3
4 Sec. 2. *Declaration of Policy.*– It is hereby the policy of the State to protect its
5 citizens from present or future technology that may pose a risk to their right to privacy
6 and may be detrimental to their well-being. Towards this end, measures should be
7 taken to ensure that innovative technology such as, but not limited to facial
8 recognition, shall be regulated, and be used only for the safety and security of all
9 citizens.

10
11 Sec. 3. *Definition of Terms.*– As used in this Act, the following terms shall mean:

- 1
- 2 (a) *Biometrics* refers to any technological and scientific authentication
- 3 method based on biology and used in information assurance (IA);
- 4 (b) *Facial Recognition Technology (FRT)* refers to any biometric software
- 5 application capable of uniquely identifying or verifying a person by
- 6 comparing and analyzing patterns based on a digital image or set of a
- 7 person's facial contours stored in a database; and
- 8 (c) *Software* refers to any computer programs, including any and all
- 9 software implementation of algorithms, models and methodologies,
- 10 whether in source code, object code, human readable form or other
- 11 form.
- 12

13 Sec. 4. *Limitations on the Development, Sale and Distribution of Facial*

14 *Recognition Technology.*— No company or entity shall develop, sell or otherwise

15 distribute any Facial Recognition Technology (FRT) hardware and/or software in the

16 Philippines without authorization and accreditation from the Department of

17 Information and Communications Technology (DICT).

18

19 Sec. 5. *Limitations on the Use of Facial Recognition Technology.*— Law

20 enforcement agencies and duly authorized safety and security firms shall utilize FRT

21 solely for profiling, identifying, and locating law offenders and fugitives. In any case,

22 the subject shall always be informed that his or her biometrics are being taken.

23

24 Sec. 6. *Use of Facial Recognition Technology by Private Companies.*— Private

25 companies such as, but not limited to banks, pawnshops, remittance centers, money

26 transfer services, and other financial institutions or similar businesses may utilize the

27 use of Facial Recognition Technology to secure and help facilitate their business

28 transactions with clients. *Provided*, That said private companies must register the

29 Facial Recognition Technology hard and/or software with the Department of

30 Information and Communications Technology. *Provided further*, That private

31 companies using Facial Recognition Technology to facilitate business transactions with

1 clients shall offer other options that said clients may utilize other than FRT to facilitate
2 transacting business with them.

3
4 *Sec. 7. Implementing Rules and Regulations.*– The Department of Information
5 and Communications Technology (DICT), in coordination with the National Privacy
6 Commission, shall promulgate the corresponding implementing rules and regulations
7 of this Act within ninety (90) days from the date of its effectivity.

8
9 *Sec. 8. Separability Clause.*– If any portion or provision of this Act is
10 subsequently declared invalid or unconstitutional, other provisions hereof which are
11 not affected thereby shall remain in full force and effect.

12
13 *Sec. 9. Repealing Clause.*– All other laws, acts, presidential decrees, executive
14 orders, presidential proclamations, issuances, rules and regulations, or parts thereof
15 which are contrary to or inconsistent with any of the provisions of this Act are hereby
16 repealed, amended or modified accordingly.

17
18 *Sec. 10. Effectivity.*– This Act shall take effect fifteen (15) days after its
19 publication in the *Official Gazette* or in a newspaper of general circulation.

Approved,